

Sri Chandra Pratap Singh v. U.P. Power Corporation Ltd. & 6 Others

High Court of Judicature at Allahabad · Division Bench · 2 November 2017 (judgment; review application rejected by order of 25.5.2018; interlocutory orders of 25.10.2017, 23.1.2018 and 31.1.2018) · Writ-C No. 49296 of 2017 · **Writ petition dismissed (judgment dated 2.11.2017) and review application rejected (order dated 25.5.2018). The consumer sought restoration of a domestic 2 KW connection (given 19.7.2001) that had been disconnected. The Division Bench found it established that the consumer had made no payment for electricity consumed over the long period from March 2010 to August 2017; that on being billed Rs. 3,56,158 for that consumption after an inspection of 17.8.2017 he moved an application in his own hand to pay the amount in two installments by two cheques (Rs. 1,50,000 and Rs. 2,00,000); that the first cheque was honoured but he procured dishonour of the second by instructing his bank to 'stop payment'; and that the supply was disconnected because that cheque was dishonoured. The Court held the licensee was justified in disconnecting the supply, rejected the pleas that bills had not been issued and that the cheques were given under coercion, and held that the disconnection date (26.10.2017) stated in the bill dated 12.10.2017 did not assist the consumer because the disconnection was triggered by the dishonour, not the ordinary billing cycle, so the department was not at fault. On review, the consumer's plea that the installment application was a forged document was rejected without any opinion on the forgery, because it was undisputed that he had issued the two cheques; the review was found to be without substance.**

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HEADNOTE

A consumer who has consumed electricity over a long period without paying, and who himself offers to clear the admitted arrears in installments by two cheques and then stops payment on one of them, cannot resist disconnection or have it quashed. The petitioner held a domestic 2 KW connection provided on 19.7.2001. The licensee (KESCO) found on inspection that he had paid nothing for consumption from March 2010 to August 2017, and billed Rs. 3,56,158 for that period. The petitioner, in his own handwriting, applied to pay the amount in two installments by two cheques (Rs. 1,50,000 and Rs. 2,00,000); the first was honoured, but he instructed his bank to 'stop payment' on the second, which was dishonoured, and the supply was disconnected. The Division Bench dismissed the writ petition. It held it to be a fact that the petitioner had made no payment for a long period, rejected his explanation that no bills had been issued, and held the licensee justified in disconnecting the supply when the second cheque was dishonoured. The plea that the cheques had been given under coercion was rejected, the petitioner having himself moved the installment application. The petitioner's argument that the disconnection on 14.10.2017 violated the U.P. Electricity Supply Code, 2005 because the bill dated 12.10.2017 stated the disconnection date as 26.10.2017 was rejected: the disconnection was on account of the dishonour of the Rs. 2,00,000 cheque (the bill itself recording that last payment by the dishonoured cheque), so the department could not be said to be at fault. On the subsequent review application, the petitioner's contention that the installment application was a forged document was rejected without any opinion on the forgery, since it was undisputed that he had issued the two cheques, one honoured and one dishonoured; the review was without substance and was rejected.

FACTUAL SUMMARY

The petitioner, Sri Chandra Pratap Singh, had been provided a domestic electric connection of 2 KW on 19.7.2001. He claimed to have paid his bills, relying on a receipt (Annexure-6) for Rs. 16,390 covering the period 30.9.2005 to 29.3.2010. The licensee — the Kanpur Electricity Supply Company Limited (KESCO), impleaded with the U.P. Power Corporation Ltd. and others — inspected the premises on 17.8.2017 and asked the petitioner to produce proof of payment; he produced only the said receipt for 30.9.2005 to 29.3.2010. According to the department's instructions placed before the Court, the petitioner had made no payment for the electricity consumed during the long period from March 2010 to August 2017 (its instructions putting the units consumed in that period at 68,295), for which a bill of Rs. 3,56,158 (exclusive of interest) was raised. The petitioner, in his own handwriting, moved an application to pay Rs. 3,56,158 in two installments by two cheques: the first, dated 25.8.2017, for Rs. 1,50,000, and the second, dated 31.8.2017, for Rs. 2,00,000. A new meter was installed on his request on 27.8.2017. The first cheque was honoured, but the second was dishonoured because the petitioner instructed his bank to 'stop payment'. A bill dated 12.10.2017 for Rs. 1,93,455 recorded a due date of 19.10.2017 and a disconnection date of 26.10.2017, and also showed the last payment of Rs. 2,00,000 by the dishonoured cheque. The connection was disconnected on 14.10.2017. The petitioner filed the writ petition seeking restoration, contending that disconnection before the bill's stated disconnection date violated the Code and that the cheques had been taken under pressure. The Division Bench (Hon'ble Dilip Gupta, J. and Hon'ble Jayant Banerji, J.) dismissed the petition on 2.11.2017 and rejected the petitioner's review application on 25.5.2018.

REUSABLE CONSTRUCTIONS

1. Where a consumer who has consumed electricity over a long period without payment is billed for the admitted arrears and himself moves an application to liquidate them in installments by two cheques, and then procures dishonour of the second cheque by instructing his bank to 'stop payment', the licensee is justified in disconnecting the supply; the consumer's own installment offer and its breach foreclose his challenge to the disconnection.
order of 2.11.2017
2. A consumer cannot resist disconnection by pleading that no bills were issued where it is established that he made no payment for consumption over a long period; nor can he plead that the settlement cheques were given under coercion when he himself moved the installment application and issued the cheques. *order of 2.11.2017*
3. The disconnection date stated in a routine bill does not bar an earlier disconnection where the disconnection is triggered not by the ordinary billing cycle but by the dishonour of a cheque the consumer had given to clear his admitted arrears; in such a case the licensee is not at fault. *order of 2.11.2017*
4. A judgment dismissing a challenge to disconnection will not be reviewed on the plea that the consumer's installment application was forged, where it is undisputed that the consumer issued two cheques (one honoured, one dishonoured); the court need not decide the forgery allegation to reject the review as without substance.
order of 25.5.2018

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

RATIO

A consumer's own two-cheque installment offer to clear admitted long-period arrears, breached by stop-payment of the second cheque, justifies disconnection and forecloses challenge; the bill's stated disconnection date does not assist where disconnection is triggered by the dishonour

QUESTION

Where a consumer who has not paid for electricity consumed over a long period offers to clear the admitted arrears in two installments by two cheques and then stops payment on the second, is the licensee justified in disconnecting the supply, and can the consumer resist on the grounds of coercion, non-issuance of bills, or the later disconnection date stated in the bill?

HOLDING

The licensee is justified in disconnecting. It was a fact that the petitioner made no payment for consumption for the long period from March 2010 to August 2017, and his explanation that no bills were issued was not acceptable. Having himself moved an application in his own hand to pay the admitted bill of Rs. 3,56,158 in two installments by two cheques, and having procured dishonour of the second cheque (Rs. 2,00,000) by instructing his bank to 'stop payment', the petitioner could not plead coercion, and the respondent was justified in disconnecting the supply on that dishonour. The argument that the disconnection on 14.10.2017 violated the Code because the bill dated 12.10.2017 stated the disconnection date as 26.10.2017 was rejected: the disconnection was on account of the dishonour (the bill itself recording the last payment of Rs. 2,00,000 by the dishonoured cheque), so the department could not be said to be at fault. *order of 2.11.2017*

EVIDENCE *"It is, therefore, a fact that the petitioner did not make payment for consumption of electricity for a long period from March 2010 till August 2017"* *order of 2.11.2017*

EVIDENCE *"The respondent was, therefore, justified in disconnecting the electric supply of the petitioner when the second cheque for Rs. 2,00,000/- was dishonoured"* *order of 2.11.2017*

EVIDENCE *"If the cheque for this amount which the petitioner had deposited was dishonoured, the department cannot be said to be at fault in disconnecting the electric supply of the petitioner"* *order of 2.11.2017*

FLAG Order-sheet with several dated orders and no numbered paragraphs (pin_basis=date). The source gives inconsistent figures for the units consumed in March 2010-August 2017 (6,298 at one place, 68,295 at another); the operative bill was Rs. 3,56,158. No specific Code clause number is cited for the disconnection-date argument, which the Court answered on the facts (disconnection was for the dishonoured cheque).

INTERPLAY · CPC::47

RATIO

Review does not lie to reagitate a dismissed challenge to disconnection by alleging the consumer's installment application was forged,

where it is undisputed the consumer issued the two cheques

QUESTION

Can the consumer obtain review of the judgment dismissing his challenge to the disconnection on the ground that the installment application (recording his offer to pay the arrears) was a forged document?

HOLDING

No. Without expressing any opinion on whether the application was a forged document, the record showed that two cheques were actually submitted by the petitioner, the first honoured and the second dishonoured on his own 'stop payment' instruction; once the cheques were so issued, there was no reason for the petitioner to assert that the application with the cheques had not been submitted by him. The review petition was accordingly without any substance and was rejected. [order of 25.5.2018](#)

EVIDENCE *“Once the cheques were issued and one of which was honoured and second was dishonoured, we see no reason as to why the petitioner should assert that the application with the cheques was not submitted by the petitioner”* [order of 25.5.2018](#)

EVIDENCE *“The review petition is without any substance. It is, accordingly rejected”* [order of 25.5.2018](#)

FLAG Review [order of 25.5.2018](#) on the same docket; the Court expressly declined to decide the forgery allegation.

PRINCIPLE TAGS

own-installment-offer-forecloses-quashing-of-recovery The petitioner's own application to pay the admitted arrears of Rs. 3,56,158 in two installments by two cheques foreclosed his challenge to the disconnection; having stopped payment on the second cheque, he could not plead coercion or resist the disconnection. [order of 2.11.2017](#)

no-free-consumption-disconnection-for-non-payment The petitioner had consumed electricity for a long period (March 2010 to August 2017) without payment; disconnection on dishonour of the settlement cheque was justified, and the plea that no bills had been issued was rejected. [order of 2.11.2017](#)

bill-disconnection-date-does-not-bar-disconnection-on-cheque-dishonour Disconnection on 14.10.2017, before the disconnection date of 26.10.2017 stated in the bill dated 12.10.2017, was not contrary to the Code, because it was triggered by the dishonour of the Rs. 2,00,000 settlement cheque and not by the ordinary billing cycle. [order of 2.11.2017](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE INSTALLMENT APPLICATION RECORDING THE PETITIONER'S OFFER TO PAY THE ARREARS WAS A FORGED DOCUMENT

On the review application the Court expressly declined to express any opinion on the alleged forgery, holding it enough that the petitioner had undisputedly issued the two cheques. [order of 25.5.2018](#)

RELATED CASES — SEE ALSO

SCJ-1976 — Closest principle sibling — a consumer's own installment offer forecloses quashing of the recovery/disconnection, applied here to the two-cheque settlement and its dishonour.

SCJ-221 — No free consumption; disconnection for non-payment upheld — the same principle relied on for the long non-payment period here.

SCJ-1075 — Clause 6.14 installment-facility sibling (M/S Savari Ice Factory v. U.P. Power Corporation Ltd.).

SCJ-1156 — Clause 6.14 installment-facility sibling in the Dakshinanchal area (Ram Ratan v. Dakshinanchal Vidyut Vitran Nigam Ltd.).

SCJ-045 — Clause 6.14 installment-facility sibling on payment of electricity dues by installments.